

Raja Ram Sharma v. State of U.P.

Allahabad High Court · Division Bench · 24 September 2018 · Writ-C No. 32051 of 2018 · **Writ disposed; relegated to CGRF under Clause 6.10.**

HEADNOTE

After an earlier writ had already sent the consumer to a Clause 6.5 billing objection, the Allahabad High Court declined a second writ challenging the Executive Engineer's decision, holding that Clause 6.10 afforded a statutory remedy before the Consumer Grievances Redressal Forum. If approached, the Forum was to decide within three months by a speaking order in accordance with law.

FACTUAL SUMMARY

Raja Ram Sharma had earlier, in Writ-C No. 29704 of 2018, sought recalculation of electricity bills from 29 September 2017 to 6 August 2018 and a decision on a pending bill-correction application. That petition was disposed of by directing him to Clause 6.5 of the U.P. Electricity Supply Code, 2005. He represented on 4 September 2018; the Executive Engineer decided it on 6 September 2018. He then sought to quash that order, obtain average billing of Rs 11,950 a month, regular bills, and prepaid-surcharge adjustment.

HOLDING-UNITS

HOLDING-UNIT · CGRF-2007::6.10

alternative remedy before CGRF after Clause 6.5 decision

HOLDING

A further writ challenging the Executive Engineer's decision on a Clause 6.5 billing representation is not entertained where the consumer has an undisputed statutory remedy before the Consumer Grievances Redressal Forum under Clause 6.10; if the consumer approaches the Forum, it is to consider and decide the grievance expeditiously, preferably within three months, by a speaking order in accordance with law. ¶ 7-8

FLAG Court cited Clause 6.10 of the U.P. Electricity Supply Code, 2005, not the CGRF Regulations, 2007.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 After an earlier writ had already sent the consumer to a Clause 6.5 billing objection, the Allahabad High Court declined a second writ challenging the Executive Engineer's decision, holding that Clause 6.10 afforded a statutory remedy before the Consumer Grievances Redressal Forum.. ¶ 7-8

clause-7.10-forum-ombudsman-route-for-billing-grievances After an earlier writ had already sent the consumer to a Clause 6.5 billing objection, the Allahabad High Court declined a second writ challenging the Executive Engineer's decision, holding that Clause 6.10 afforded a statutory remedy before the Consumer Grievances Redressal Forum.. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXECUTIVE ENGINEER'S ORDER DATED 6.9.2018, CORRECTNESS OF THE BILLS, AVERAGE-BILLING CLAIM, AND PREPAID SURCHARGE/PENAL-INTEREST ADJUSTMENT

Writ declined on alternative remedy; no finding on the bill or the 6.9.2018 order. ¶ 4

